were no other barons among the peerage but ſuch as were ſummoned by writ, in reſpect of the tenure of their lands or baronies, till Richard the ſecond firſt made it a mere title of honor, by conferring it on divers perſons by his letters patent [n].

HAVING made this ſhort enquiry into the original of our ſeveral degrees of nobility, I ſhall next conſider the manner in which they may be created. The right of peerage ſeems to have been originally territorial; that is, annexed to lands, honors, caſtles, manors, and the like, the proprietors and poſſeſſors of which were (in right of thoſe eſtates) allowed to be peers of the realm, and were ſummoned to parliament to do ſuit and ſervice to their ſovereign: and, when the land was alienated, the dignity paſſed with it as appendant. Thus the biſhops ſtill ſit in the houſe of lords in right of ſucceſſion to certain antient baronies annexed, or ſuppoſed to be annexed, to their epiſcopal lands [o]: and thus, in 11 Hen. VI, the poſſeſſion of the caſtle of Arundel was adjudged to confer an earldom on it's poſſeſſor [p]. But afterwards, when alienations grew to be frequent, the dignity of peerage was confined to the lineage of the party ennobled, and inſtead of territorial became perſonal. Actual proof of a tenure by barony became no longer neceſſary to conſtitute a lord of parliament; but the record of the writ of ſummons to them or their anceſtors was admitted as a ſufficient evidence of the tenure.

PEERS are now created either by writ, or by patent: for thoſe who claim by preſcription muſt ſuppoſe either a writ or patent made to their anceſtors; though by length of time it is loſt. The creation by writ, or the king's letter, is a ſummons to attend the houſe of peers, by the ſtile and title of that barony, which the king is pleaſed to confer: that by patent is a royal grant to a ſubject of any dignity and degree of peerage. The creation by writ is the more antient way; but a man is not ennobled thereby, unleſs he actually takes his ſeat in the houſe of

[n] 1 Inſt. 9. Seld. *Jan. Angl.* 2. §. 66.
[o] Glanv. *l.* 7. *c.* 1.
[p] Seld. tit. of hon. b. 2. c. 9. §. 5.

lords: